

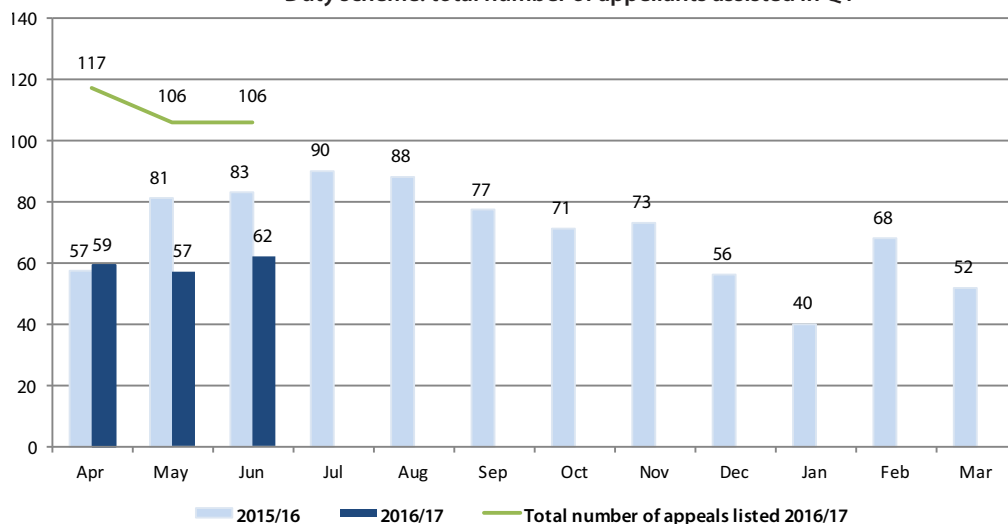
ASAP quarterly monitoring report

DUTY SCHEME

TOTAL NUMBER OF APPELLANTS ASSISTED

In Q1 we helped 178 appellants. Including dependants the total number of people helped was 269. We assisted 75% of appellants who had oral hearing (excluding cases that we could not have helped with, even if we had been able to).¹

Duty scheme: total number of appellants assisted in Q1



NOTES

1 These are cases that are withdrawn or adjourned prior to the hearing, cases that are designated by the Tribunal as being "ASAP barred" (the Tribunal prohibits us from assisting when an appellant is represented by a law firm unless they received written consent from the firm) or cases where the client failed to attend or refused our assistance.

2 There is some overlap in these categories as some cases concerned more than one subject (for example they may have related to both destitution and further submissions).

3 Judicial review.

4 This figure is adjusted to take into consideration clients whose appeals were withdrawn or who didn't attend their hearings.

APPEAL OUTCOMES

	Q1	Q2	Q3	Q4	2016/17	2015/16
% Allowed	57				57	55
% Remitted	15				15	16
% Dismissed	25				25	25
% Other	3				3	4

The vast majority of cases that were remitted were appeals against discontinuation decisions. A decision to remit in these circumstances means that the appellant will keep their support so we consider this to be a successful outcome. By adding this proportion to our allowed appeals, our 'success rate' was 71%.

APPEAL SUBJECT

- 78% of cases related to Section 4 (s4) support; 22% of cases related to Section 95 (s95) support.
- s4 cases were more likely to be allowed or remitted (75%, compared with 62% of s95 cases). s95 appeals were marginally more likely to be dismissed (27% of s95 cases were dismissed compared with 24% of s4 cases). We believe this difference was due to the fact that the majority of s95 appeals related to complex destitution appeals.

TOP 5 ISSUES IN Q1:²

1. s4 regulation 3(2)(e) – further submissions cases (72 cases = 46% caseload):

- 64% allowed, 19% dismissed, 17% remitted
- 87% of appeals were allowed where further submissions had been rejected and the JR³ was at pre-permission stage
- We won 56% of appeals where the client was preparing further submissions but these had not been handed to the Home Office yet. A further 16% of these cases were also remitted.

2. s95/s4 destitution cases (48 cases = 30% caseload):

- 70% allowed, 23% dismissed, 2% remitted
- s4 and s95 destitution cases had different outcomes; 81% of s4 destitution appeals were allowed compared with 55% of s95. This reflects our experience that s95 cases have been getting increasingly complex and difficult to prepare.

3. s4 regulation 3(2)(a): reasonable steps cases (8 cases = 5.1% caseload):

- 62.5% allowed, 37.5% dismissed